

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	13-07-2026 18:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	13-07-2026 18:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम / Department Name	Indian Oil Corporation Limited
संगठन का नाम / Organisation Name	loci- Digboi Refinery
कार्यालय का नाम / Office Name	loci- Digboi Refinery
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id :baishyaa2@indianoil.in Buyer Email id: prasadm3@indianoil.in
कुल मात्रा / Total Quantity	3
वस्तु श्रेणी / Item Category	VIB. MON. KIT, REFRI. MMS. WCV. 321. KIT, KPCL , INSTALLATION & COMMISSIONING
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	TEST123
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	JAR TEST APPARATUS, Point of Care Rapid Test Kits for Humans - Dengue, Malaria, Typhoid & Others, Power cage, Rapid Test Kit for HIV / Syphilis / Hepatitis B Virus (HBV) / Hepatitis C Virus (HCV), Test Sieves as per IS 460 (Part 1 and Part 2), Concrete Test Hammer (Rebound Hammer), Transformer Oil BDV Test Kit, Multipurpose or General Test Tubes (V2) as per IS 2618, Test Tube Rack
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Whole Body Vibration Unit (Machine)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	10
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Single Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	VIB. MON. KIT, REFRI. MMS. WCV. 321. KIT, KPCL
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	4 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 10 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	No
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एमएसई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MSE

सक्षम प्राधिकारी का नाम/Name of Competent Authority	ALAKESH BAISHYA
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	DGM (MAT)
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	MATERIALS
सीए अनुमोदन संख्या/CA Approval Number	DMP26S037G
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	03-07-2026
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	The Approval Granted by ALAKESH BAISHYA DGM (MAT), MATERIALS....

Competent Authority Approval for not opting Micro and Small Enterprises Preference : [View Document](#)

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमआईआई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MII

सक्षम प्राधिकारी का नाम/Name of Competent Authority	ALAKESH BAISHYA
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	DGM (MAT)
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	MATERIALS
सीए अनुमोदन संख्या/CA Approval Number	DMP26S037G
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	03-07-2026
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	The Approval Granted by ALAKESH BAISHYA DGM (MAT), MATERIALS.....

Competent Authority Approval for not opting Make In India Preference : [View Document](#)

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

Single Tender

Single Tender Applicable	Yes
Reason	The sources of supply are definitely known and possibility of fresh source(s) beyond those being tapped is remote.
List of Seller Organization for participation	KIRLOSKAR PNEUMATIC COMPANY LIMITED

1. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

VIB. MON. KIT, REFRI. MMS. WCV. 321. KIT, KPCL (2 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	CHUMBIT PRAKASH MAHANTA	786171,Materials Department	2	180

INSTALLATION & COMMISSIONING (1 set)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	CHUMBIT PRAKASH MAHANTA	786171,Materials Department	1	270

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**1. Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3. Generic

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- Copy of PAN Card.
- Copy of GSTIN.
- Copy of Cancelled Cheque.
- Copy of EFT Mandate duly certified by Bank.

4. Scope of Supply

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

5. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

SINGLE PROPRIETARY TENDER



Offer from only bidder M/s Kirloskar Pneumatic Co. Ltd. shall be considered for evaluation, who is the proprietary bidder for the required goods in IndianOil or its

Project Management Consultant for the required Goods category.

Offer received from any other bidder will be treated as unsolicited offer and summarily rejected.

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*Proprietary Article Certificate (PAC) Enclosed in “Buyer uploaded ATC document”

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BUYER SPECIFIC ATC

1. Tender ID/ GeM Bid ID: Please Refer GeM portal

2. **IOCL Tender Reference No.: DMP26S037G**

3a.Type of Tendering: Custom Bidding

3b.Type of Bidding: Single Bid

4. Tender Item Description: Procurement, installation & commissioning of two vibration monitoring systems for the Refrigeration compressors (9500-008-KS-SC-101A/B) of SDU unit of Digboi Refinery

5. Location (s) of Work: IOCL Digboi Refinery, Digboi, Tinsukia Assam ; Pin Code – 786171

6. Bid Security Declaration (BSD) / Earnest Money Deposit (EMD):

Bidder has to submit Bid Security Declaration, on their Company Letterhead as per the attached format in the ATC In lieu of Earnest Money Deposit, **Annexure -H (Mandatory)**. Bid Security Declaration shall be applicable for all Bidders irrespective of their status as MSE / Start-up /any exempted bidder category.

Offers received without BSD as per tender requirement shall be liable for rejection.

7a.Tender issuing department contact details:

Contact Person: M Prasad
Designation:- MTO(P)
Email Id – prasadm3@indianoil.in
Contact No. – 03751-26-3261

Contact Person: MK Das
Email Id – manoj_das@indianoil.in
Designation:- SMTM(P)
Contact No. – 03751-26-3259

Name of HOD:- Mr. A Baishya
E-mail id.:- baishyaa2@indianoil.in
Designation:- DGM-Materials
Contact No.:- 03751-26-3251

All correspondences pertaining to this tender shall mention IOCL Tender Reference number (mentioned above at sl 2) and respective GeM Bid Id in its subject.

7b. Notifying Authority Contact Details

Immediately after dispatch the vendor shall inform IOCL (AOD) Digboi Refinery the dispatch particulars/ details (including INVOICE, LR copy, transporter details and contact) over e-mail

CONTACT PERSON IN IOCL:

CHUMBIT PRAKASH MAHANTA
Senior Materials Manager
Materials Department (Stores)
Indian Oil Corporation Limited | Digboi Refinery
Tel: 03751- 26-3253 / 3295
MAIL: mahantacp@indianoil.in, digmatcrd@indianoil.in

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8. PRE-QUALIFICATION CRITERIA (PQC): Not Applicable

Notes:

1. Notwithstanding any other condition / provision in the tender documents, bidders are required to submit complete documents pertaining to Pre-Qualification Criteria (PQC) along-with their offer. IOCL reserves the right to complete the evaluation, with or without seeking any additional supporting documents / clarifications. Bidder's representation on the same will not be considered.

2. *Submission of authentic documents is the prime responsibility of the bidder. However, IOCL reserves the right to verify the PQC documents submitted by the bidder(s). For the purpose of verification, bidders shall submit complete client details with names, address, phone numbers and e-mail id with the understanding that IOCL may contact the bidder's client to verify the PQC documents. Wherever required, bidders may have to submit notarized / verified copy of PQC documents. Non submission of these documents, if asked for, will lead to rejection of offer. Should IOCL decide to place order pending verification of PQC documents, payment shall be made only after completion of order. If at any stage, the PQC documents are found to be forged / false / fake, suitable penal action shall be taken, which may include offer rejection, EMD forfeiture, termination of order (wherever applicable) and holiday listing / suspension (in GeM) of the bidder / vendor*

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9. Delivery and Completion Period

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Supply of materials : 6 months from the date of PO.

Installation & commissioning : 3 months from the date of receipt of materials.

Vendor to report at site, execute site work and handover after successful completion as per the Engineer-In-Charge (EIC) within the completion period specified in this tender. On receipt of PO/LOA/GEM CONTRACT, vendor shall immediately collect contact details of EIC from Tender issuing authority or the consignee.

COMPLETION PERIOD for Site Service: 3 months from the date of receipt of materials.

Our preferred delivery period for supply is indicated in the tender. The bidder has to quote their earliest firm delivery period.

The delivery period shall be reckoned from the date of GeM Order. Date of LR / RR / Coastal Bill of Lading shall be considered as Date of Delivery.

10a. Third Party Inspection

TPI is Not applicable for this tender.

10b. IBR

Please refer tender technical specification for IBR requirement, if any. In case if IBR is applicable then IBR inspection shall be applicable for IBR items. IBR Charges shall be inclusive in your quoted prices.

11. Payment Terms

Payment terms shall be as per GeM General Terms and Conditions.

For Vendor Invoice Management details: Kindly refer attached **Annexure-I**

12. Guarantee/Warranty

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Scope of Warranty shall be as per GeM GTC, if not defined elsewhere in the tender.

Defect Liability period: Shall be as per GEM GTC.

13. Performance Bank Guarantee (PBG)

Not Applicable.

14. Complete Schedule

Complete schedule of procurement shall be from date of issuing of the tender to date of opening of tender along with extension thereof if any plus offer validity of 120 days and extension thereof if any.

15. Instruction to Bidders & Other Relevant points

a. Negotiations will not be conducted with the bidders as a matter of routine. However, IOCL reserves the right to conduct price negotiations.

- b. Bidders to quote competitive prices considering the fact that price negotiations, if required, to be held with the lowest bidder only.
- c. Tendering can be abandoned without assigning any reason. No compensation shall be paid for the efforts made by the bidder.
- d. IOCL reserves the right to accept or prefer any tender or to abort the bidding process without assigning any reason whatsoever.
- e. Although normally the lowest responsive bid amongst the bids submitted by bidders and considered by IOCL to be qualified and competent shall be preferred, IOCL reserves the right not to accept the lowest bid if in its opinion this is not in the interest of IOCL.
- f. Cartel formation, bid rigging, collusive bidding are against the basic principle of competitive bidding and defeats the very purpose of open and competitive tendering system. Such practices are severely discouraged. Suitable administrative actions which include but not limited to rejecting the offers, forfeiture of EMD (not by way of penalty or liquidated damages but by way of reimbursement of the pre-estimated costs likely to be incurred by the OWNER towards bidding process and in the scrutiny and evaluation of bids), holiday listing action as per policy in vogue for breach of integrity pact may be initiated in such cases.
- g. If a bidder withdraws its bid within validity period for any reason, their bid shall not be further evaluated, and suitable penal action taken which may include EMD forfeiture (if any) (not by way of penalty or liquidated damages but by way of reimbursement of the pre-estimated costs likely to be incurred by the OWNER towards bidding process and in the scrutiny and evaluation of bids) and / or holiday listing action as per the discretion of IOCL.
- h. **Deviation to Gem Tender Terms & conditions** including payment terms etc **shall not be accepted**. No further clarification may be sought for the same. Bidder's representation may not be considered once bidder has been rejected for the same.
- i. A Bidder shall submit only one bid in the same bidding process. A Bidder who submits or participates in more than one bid will cause all the offers in which the bidder has participated to be disqualified.
- j. Alternative or Multiple price bids are not acceptable. Each tendered / bidder can submit only one tender / bid for one package.
- k. By submitting the bid against this tender, the bidder declares that none of the e-documents have been tampered with. In case of tampering of e-documents, the bid shall be rejected outright and EMD, if applicable, shall be forfeited, not by way of penalty or liquidated damages but by way of reimbursement of the pre-estimated costs likely to be incurred by the OWNER towards bidding process and in the scrutiny and evaluation of bids. This shall be without prejudice to any other rights or remedies available to the Owner.
- l. Bids submitted on consortium basis are not acceptable, unless otherwise specified in the Tender.
- m. IOCL reserves the right to allow purchase preference to MSEs and Local Suppliers as per extant Government policy and to JV Companies as per IOCL policy.

cy in vogue.

n. In case a bidder submits any of the Pre-Qualification support documents (full / part) in any language other than English, then it will be the responsibility of such bidder to also provide the English translation copy of the same duly certified, stamped and signed by their Local Chamber of Commerce. Translation by Indian Embassy / High Commission or authorized / approved translation agencies (by Indian Embassy / High Commission) or any other independent authority shall also be acceptable apart from the Local Chamber of Commerce of country of origin.

o. Ordinarily, all claims are time barred after a period of three years calculated from the date when the payment falls due unless claim has been acknowledged to be payable, in writing.

p. Any Addendum / Corrigendum / Sale date extension in respect of above tender shall be issued on website <https://gem.gov.in> and Bidders are, therefore, requested to regularly visit our website to keep themselves updated."

q. Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents / declarations sought in the Bid document, ATC and Corrigendum if any.

r. A Tender is also liable for rejection in the following circumstances, if a bidder:

- i) Does not fulfill minimum qualification criteria prescribed in the tender documents.
- ii) In case the bidder misrepresents facts or submits, forged, false or fabricated document.
- iii) Bidder is holiday listed as per prevailing holiday listing guidelines.
- iv) If insolvency resolution process has commenced (viz. application has been admitted by Adjudicating Authority and moratorium has been imposed and I RP has been appointed) or liquidation or bankruptcy proceedings have commenced in respect of bidder in terms of Insolvency and Bankruptcy Code, 2016 or any other applicable law (in cases where code is not applicable) at any stage of evaluation of bid.
- v) Indulges in tampering of document
- vi) Offer from joint bidders / consortium, unless specifically permitted in the tender for such bidding.
- vii) Bidder is not eligible to participate
- viii) The bidder does not sign the IP Agreement (if applicable)
- ix) If the Earnest Money Deposit/ Bid Security Declaration is not deposited or exemption document (if applicable) is not uploaded before closing date and time of tender
- x) Stipulates the validity period of the bids lesser to what is stated in the tender document.
- xi) Stipulates his own conditions and refuse to withdraw them.
- xii) Does not fill in and sign the tender acceptance formats as specified in the tender.
- xiii) If the bids contain unacceptable terms and conditions.
- xiv) Any discrepancy done with the BOQ uploaded on the e-tender portal.

s. If a bidder does not quote for some components / spares / accessories specifically indicated in the tender for consideration along with the main equipment, the same shall be considered as "free supply"

16. Integrity Agreement or Pact (IA/IP) : Not applicable

17. 'Government of India has implemented the Trade Receivables Discounting

System (TReDS). TReDS is an institutional mechanism set up in order to facilitate the financing of trade receivables of MSMEs from corporate buyers through invoice financing by multiple financiers. IOCL is already registered on the following TReDS Platforms:

1.Receivables Exchange of India Ltd (RXIL)

Website: <https://www.rxil.in/>

Address: Receivables Exchange of India Limited, 701-702, 7th Floor, Supremus, E Wing, I-Think Techno Campus, Kanjur Marg East, Mumbai 400042.

2.M1xchange

Website: <https://www.m1xchange.com/>

Address: Unit No. A/04-01 to A/04-6D and A/04-07, 4th Floor Tower A, Reach Commercial, Sector 68, Gurugram -122101, Haryana

MSME bidders are requested to register on the TReDS platform'.

18. "The Government of India envisioned the Zero Defect Zero Effect (ZED) initiative (Bronze/Silver/Gold level) and the Lean Certification initiative (Basic/Intermediate/Advanced level) to enhance MSME competitiveness, ensure sustainability, and transform them into national and international champions.

For complete details on registration, required documents, benefits, and other related information, visit the links below:

<https://zed.msme.gov.in/>

and the link below.

<https://lean.msme.gov.in/>

Kindly register and take advantage of these GOI initiatives."

19. In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs) / Port Authorities inter-se and also between CPSEs and Government Departments/Organizations (excluding disputes relating to Railways, Income Tax, Customs & Excise Departments), such dispute or difference shall be taken up by either party for its resolution through AMRCD as mentioned in DPE OM No. DPE 02/0001/2023-AMRCD-FTS-13578 dated 8th December, 2023 and the decision of AMRCD on the said dispute will be binding on both the parties.

6. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---